

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
MEGAN MASUR,Index No.:
Date Purchased:

Plaintiffs,

SUMMONS

-against-

Plaintiff designates Kings
County as place of trial.THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") ADDULLAH ODEH,
and John and Jane Does Nos. 1-5-, in their individual
capacities,The basis of venue is the location of
the unlawful actsDefendants.
----- X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
October 9, 2019

BELDOCK LEVINE & HOFFMAN LLP

By: _____
David B. Rankin
99 Park Avenue, PH/26th Fl.
New York, New York 10016

(212) 490-0400
Attorneys for Plaintiffs

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Police Officer Abdullah Odeh
NYPD 84th Precinct
301 Gold Street
Brooklyn, NY 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MEGAN MASUR,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

-v-

Index No.

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") ABDULLAH ODEH, and
John and Jane Does Nos. 1-5, in their individual
capacities.

Defendants.
-----X

Plaintiff Megan Masur, through their attorney David B. Rankin of Beldock Levine &
Hoffman, LLP, as and for their complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. The is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of the State of New York.

2. Plaintiff Megan Masur's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, arrested, and searched them in their own apartment. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, Plaintiff was deprived of their constitutional rights.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. The Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343 (a)(3)-(4). The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States.

5. Pursuant to New York State General Municipal Law § 50-e, plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2018PI026139.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the Plaintiff resides in Kings County, the incident took place in Kings County, and defendants regularly and substantially conduct business in Kings County. C.P.L.R. § 503 (a) and (b).

8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

9. Plaintiff Megan Masur ("Ms. Masur") is and was at all times relevant to the action, a resident of Kings County in the State of New York.

10. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

11. New York City Police Department Officers (“P.O.”) Abdullah Odeh and John and Jane Does 1 – 5 (referred to collectively as the “Individual Defendants”) are and were at all times relevant herein, officers, employees, and agents of the NYPD.

12. The true names and shield numbers of defendants P.O. John and Jane Does are not currently known to the plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in the action.

13. The Individual Defendants are being sued in their individual capacities.

14. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

15. The Individual Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

¹ By identifying said defendants as “John Doe” or “Richard Roe,” plaintiff is making no representations as to the gender of said defendants.

16. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

17. On July 12, 2018, at approximately 1:00 a.m., the individual defendants, unlawfully and forcefully entered Ms. Masur's home, without a warrant or exigent circumstances, on Adams Street in Kings County in the City and State of New York.

18. After waking up Ms. Masur, the Individual Defendants informed Ms. Masur that they had information that she was suicidal.

19. She denied she was suicidal and told the officers she was fine. She asked them to leave, the individual defendants did not leave.

20. At best, the Individual Defendants had an unverified tip, which did not provide a legal basis to enter her home or to detain her when confronted with her statements and demeanor in her home.

21. The Individual Defendants informed Ms. Masur that she nonetheless had to go with them or would be charged with a crime and taken to a police precinct.

22. Ms. Masur was handcuffed in her lobby and transported to Woodhull Hospital where she was kept on a psychological hold until she saw a psychologist and was release because they deemed that she was not a threat to herself or others.

23. While at Woodhull Hospital Ms. Masur was denied the medication that she takes for her diabetes.

24. The Individual Defendants' actions were unlawful and violated Ms. Masur's constitutional rights and common law rights.

25. As a result of the unlawful entry and arrest, Professor Allred experienced pain, suffering, and extreme mental anguish.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against the Individual Defendants)**

26. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

27. Defendants, under color of state law, subjected the Plaintiff to the foregoing acts and omissions, thereby depriving Plaintiff of their rights, privileges and immunities secured by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unlawful entry into Plaintiff's home, without consent, without a warrant, and without probable cause or exigent circumstances; (b) freedom from unreasonable seizure of Plaintiff's person; (c) freedom from unlawful search of their person and home; (d) freedom from arrest without probable cause; (e) freedom from false imprisonment; (f) freedom from the use of excessive force against their person; and (g) failure to intervene to prevent the complained of conduct.

28. Defendants' deprivation of Plaintiff's constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS –
42 U.S.C. § 1983
(Against defendant the City of New York)**

29. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

30. At all times material to the complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

a. NYPD officers routinely conduct arrests in private residences without a warrant or verifying an exception to the warrant requirement, and despite a lack of probable cause;

b. NYPD officers routinely enter homes in the absence of a warrant or exigent circumstances, and in the absence of any corroborating information or investigation, seize and forcibly transport individuals encountered in private residences to hospitals for psychiatric evaluation in violation of their constitutional rights;

c. Defendant City failed to properly train NYPD officers as to the permissible bounds of the Fourth Amendment, the warrant requirement for entry into a private residence, and the limited exceptions to the warrant requirement;

d. NYPD officers routinely receive prank calls with false or hearsay allegations from disgruntled individuals seeking to utilize the NYPD as a weapon in personal vendettas, and yet Defendant City does not train NYPD officers as to:

i. The necessary steps that must be taken to properly confirm probable cause to support entry, obtain a warrant, or lawfully arrest;

ii. The common indicia of such false allegations concerning conditions in private residences;

iii. The indicia of emergency and/or exigent circumstances warranting a departure from the warrant requirement;

iv. How to conduct an investigation to lawfully support entry into a private residence or further investigation and action therein, including the additional information needed to support entry or seizure of a subject in a private residence without a warrant;

v. The permissible bound of force to be utilized when entering a private residence without a warrant and for the limited purpose of investigating an emergency and to conduct a wellness check of the subject individual;

e. It is also a custom, policy, and/or practice of the City to conduct inadequate screening in the hiring of police officers for their propensity for violence, and to retain those officers despite repeated excessive force incidents and violations of constitutional rights.

f. Despite a pervasive and well-documented practice of entering private residences and arresting the lawful residents without a warrant or probable cause, Defendant City failed to train, supervise, and discipline its officers in regards to violations of the warrant requirement;

31. That defendant City deliberately disregarded a pervasive custom and practice amounting to institutional policy giving rise to the constitutional violations alleged herein is further supported by a Civilian Complaint Review board report titled “Crossing the Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015.”²

32. Despite the well documented nature of the unconstitutional policies and practices, defendant City has allowed the same to continue, directly causing the violation of Plaintiff’s rights, in addition to many others.

33. Here, the Individual Defendants unlawfully entered Plaintiff’s apartment, searched, and seized Plaintiff, based on un-corroborated hearsay allegations, conduct arising falling within and arising directly from defendant City’s unconstitutional policies and practices.

34. At all times material to the complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the Individual Defendants and failed to inform the Individual Defendant’s supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

35. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff’s constitutional rights

² “Crossing the Threshold: An Evaluation of Civilian Complaints of Improper Entries and Searches by the NYPD from January 2010 to October 2015,” Bill De Blasio, Richard D. Emery, Mina Q. Malik, New York City Civilian Complaint Review Board, 2015.

as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, and Fourteenth Amendments.

36. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE
LAW VIOLATIONS

37. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

38. The conduct of defendants alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and employees of defendant The City of New York, clothed with and/or invoking state power and/or authority, and, as a result, defendant The City of New York is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

39. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM
ASSAULT AND BATTERY

40. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

41. By the actions described above, defendants did inflict assault and battery upon Plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and

damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

42. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FIFTH CLAIM
FALSE ARREST and FALSE IMPRISONMENT

43. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

44. By the actions described above, defendants caused to be falsely arrested or falsely arrested Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

45. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM
INTENTIONAL and NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

46. The Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

47. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and

damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

48. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

**SEVENTH CLAIM
NEGLIGENCE**

49. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

50. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

51. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**EIGHT CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING**

52. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

53. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

55. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

56. Plaintiffs were deprived of their right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

JURY DEMAND

57. Plaintiff demands a trial by jury in their action on each and every one of their damage claims.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That they be compensated for violation of their constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That they be awarded punitive damages against the Individual Defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of their action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: October 9, 2019
 New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016

t: 212-277-5825

e: drankin@blhny.com

Attorneys for Plaintiff



By: _____
David B. Rankin

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: October 9, 2019
New York, New York

Respectfully submitted,

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Attorneys for Plaintiff



By: _____
David B. Rankin